Land Use and Soils Policy

The Green Party will improve the ways we use and care for land, for the sake of current and future generations, other species, and ecosystem health. We will ensure that land use and land cover are managed in accordance with Te Tiriti o Waitangi. Protecting soils and minimising the impacts of mining will be priorities.

Vision

Land and soil ecosystems are protected and regenerated for present and future generations, to nurture our wellbeing and livelihoods, and provide food, medicine, and spiritual fulfilment.

Values and Principles

- *Honour Te Tiriti o Waitangi*: We affirm tino rangatiratanga of iwi, hapū and whānau as kaitiaki of this whenua. The perspectives, approaches, needs, and aspirations of tangata whenua are embedded in the philosophy and approach to land and soil management.
- *Ecological Wisdom*: We must respect land and soil as part of the ecosystems we rely on. Soil ecosystems have intrinsic value, and humanity needs to steward the natural world by understanding and working within the carrying capacity of the land.
- *Social Responsibility*: The need for equity in the sustainable use of land and soil resources is acknowledged.
- *Appropriate Decision-Making*: Good governance (i.e., the processes by which institutions and other parties make and implement decisions in order to manage resources efficiently and ensure human rights), and strong institutions should underpin land and soil management.
- *Non-Violence*: Conflict resolution over land and soil management should ensure no violence is felt by te taiao, the creatures that call it home, and always honour Te Tiriti.
- *The mauri of land* - its cultural, spiritual, historical, conservation and ecological aspects - are prioritised. At the same time, agricultural land is valued for its ability to produce healthy food, fibre and wood and is regenerated and managed sustainably to ensure that its productive potential is protected and enhanced.

Strategic Priorities

The Green Party's strategic goals include:

> *"All native species and their habitats will be thriving or on a path to recovery in terrestrial, freshwater and marine environments.*

Our laws and practices will respect the biological integrity of all life, while prioritising the health of indigenous species and ecosystems.

The customary and decision making roles of whānau, hapū and iwi will be integral to decisions about resource use.

Decision-making about resource use will provide for community participation and environmental justice."

Actions in this policy that will help achieve this include:

- Upholding the right of tangata whenua to exercise customary practices regarding soil sovereignty and māra kai on their land. (1.1.2)
- Using both mātauranga Māori and Western science in research and the development of land and soil policies and practices. (2.1.3)
- Encouraging and resourcing landowners and communities to set marginal and erosion-prone lands aside for permanent revegetation. (1.5.1)
- Encouraging and supporting the use of soil conservation and earthworks best practice, including mechanical and biological control techniques (2.2.3)
- Ensure that the regulatory framework for mining avoids and mitigates harms (3.1)
- End the extraction of coal, oil, and gas, consistent with the urgency and necessity of limiting global heating to 1.5 °C above pre-industrial levels (3.5)

Connected Policies

This policy discusses land use and soils within the context of Biodiversity and Environmental Regeneration, alongside our Freshwater and Marine Policies. Land health is impacted by human activity, including Agriculture, Forestry, Housing and Sustainable Communities, Waste and Hazardous Substances, and Climate Change. Resource extraction from land can be minimised through resource and Waste management, including circular economy practices.

For our response to colonial land dispossession, please see our Kaupapa Māori and Te Tiriti o Waitangi Policies.

Policy Positions

1. Land Use Management

Issues

Extractive land uses that emphasise productivity and economic potential have dominated since colonisation. Land used for farming and commercial forestry, urban areas, and infrastructure has expanded by clearing or reclaiming vast areas of indigenous forest, wetlands, and other ecosystems. This loss is ongoing, especially in lowland areas, as is the loss of highly fertile land and soil to forestry and urban development. Water quality, watershed hydrology, habitat and species composition, climate and carbon storage have all been negatively affected by changes in land cover.

Actions

1.1. Affirm the tino rangatiratanga of iwi, hapū and whānau when making decisions on land use, including by:

1.1.1. Facilitating strategic co-governance of ecological regions, informed by robust assessment (including physical characteristics and risks), community consultation, planning, and monitoring.

1.1.2. Upholding the right of tangata whenua to exercise customary practices regarding soil sovereignty and māra kai on their land.

1.1.3. In partnership with tangata whenua, exploring a tikanga Māori-based system of public access to Crown and private land.

1.2. Ensure that land use management systems:

1.2.1. Protect wāhi tapu | sacred sites

1.2.2. Reflect the urgency of climate change mitigation and adaptation

1.2.3. Align with soil type, supports soil biodiversity, and prevent erosion

1.2.4. Protect freshwater ecosystems, including water quality and flows

1.2.5. Restore, connect, and protect native species and ecosystems

1.2.6. Protect unique or vulnerable landscapes, including high-country property, from uses that are outside the public interest.

1.2.7. Recognise, protect, and support the restoration of significant indigenous heritage and cultural landscapes, including within urban areas

1.2.8. Recognise the interconnection of land use and animal husbandry methods with ecosystem and human health, including zoonotic diseases

1.2.9. Balance the rights and responsibilities of individual property owners against the public good and collective responsibilities.

1.3. Mitigate green field development, and regenerate and protect valuable food growing soils, including by:

1.3.1. Identifying and mapping highly productive land and protecting it from urban development.

1.3.2. Protecting and enhancing greenbelts, and enhancing the legislative protection of the rural-urban boundary

1.4. Ensure that land use patterns and functions in buffer zones adjacent to protected areas and public conservation land are compatible with and complement conservation objectives, including by:

1.4.1. Establishing land use linkages and ecological corridors, including through developed areas.

1.4.2. Improving processes for leasing and selling rural Crown land to protect conservation values, public access to the conservation estate, rural communities, and the interests of relevant iwi and hapū and the Crown.

1.5. Ensure all ecological regions in Aotearoa New Zealand have a minimum five percent of the land area is in native vegetation or set aside for the restoration of nature, by:

1.5.1. Encouraging and resourcing landowners and communities to set marginal and erosion-prone lands aside for permanent revegetation.

1.5.2. Devising and implementing a land cover strategy and action plan to rehabilitate and restore degraded land cover systems of national concern, in partnership with tangata whenua.

1.5.3. Requiring all landowners and land developers to replace any displaced area of ecological value with a comparable area of equal or greater ecological value.

2. Soil Protection

Issues

Soil quality and health is being degraded by intensive practices in primary industries and urban development and pollution. Common issues include soil compaction and over-fertilisation. The past use of hazardous substances in industry, agriculture, and horticulture has left a legacy of soil contamination. Naturally high rates of erosion have accelerated due to deforestation, grazing animals, intensive land use, and climate change, causing hundreds of millions of tonnes of soil to enter rivers each year, valuable topsoil to be lost, and stored carbon to be released.

Actions

2.1. Establish a national soil management agency to:

2.1.1. Develop and implement a National Soil Strategy that promotes soil health, soil conservation, and carbon sequestration.

2.1.2. Set direction on soil use, policies, and research, such as improving knowledge of how the land responds to human pressures, understanding the potential limits to land-use intensification and other development, and discovering what drives natural resource management decisions.

2.1.3. Use both mātauranga Māori and Western science in research and the development of land and soil policies and practices.

2.1.4. Promote objective assessment, monitoring and accountability among all stakeholders.

2.1.5. Prevent land from being used beyond its capabilities

2.2. Minimise soil erosion, including by:

2.2.1. Requiring the soil surface to be protected with vegetation cover as soon as possible after the harvest of trees and crops, earthworks, or other vegetation clearance.

2.2.2. Expanding soil protection programmes, such as the Hill Country Erosion Programme, to improve environmental quality and reduce flooding.

2.2.3. Encourage and support the use of soil conservation and earthworks best practice, including mechanical and biological control techniques

2.3. Ensure soil pollution is effectively regulated and controlled, including by:

2.3.1. Requiring treatment and remediation costs to be paid by the polluters.

2.3.2. Preventing herbicides, fungicides, and pesticides from damaging soil system integrity, including phasing out all that do.

2.4. Protect and enhance the role of soil in re-capturing or sequestering carbon and retaining water.

2.4.1. Develop a national wetland strategy that prioritises the establishment and restoration of wetlands to accumulate carbon in areas that are otherwise unsuitable for productive agriculture, such as boggy and flood-prone areas.

2.5. Support landowners to retain and regenerate soils and improve soil ecosystems, including by:

2.5.1. Providing soil mapping and soil quality information to land-use and farm consultants, farmers, developers, and other land users.

2.5.2. Monitoring and reporting on the loss and quality of soils, rates of soil carbon sequestration, and soil biodiversity.

2.5.3. Funding research and development to identify new innovations for building soil, such as commercial-scale production and application of humus.

3. Mining[1]

Issues

Mining is an exploitative process, which adversely impacts the ecological, historical, archaeological and/or cultural significance of the land and sea. These impacts arise not only from the physical disturbance and noise caused by extraction, but also from toxic substances released by the extraction process. Mining often extracts materials that directly contribute to the climate crisis through their greenhouse gas emissions. Furthermore, the profits usually go to large corporations, while local communities pay for the clean-up. Mined materials are too often exported out of our country, representing a loss to current and future generations.

[1] Mining: The term is used in the broad sense to include quarrying, well operations, beneficiating (e.g., crushing, screening, washing, and flotation), and other preparation customarily performed at the mine site, or as a part of mining activity.

Actions

3.1. Ensure that the regulatory framework for mining avoids and mitigates harms, including:

3.1.1. Honouring Te Tiriti o Waitangi, including upholding the right of Māori to exercise tino rangatiratanga over their lands and resources, including minerals and ecosystems and species impacted by mining;

3.1.2. Limiting mining to essential materials:

3.1.2.1. that are required for our transition to a just and sustainable circular economy, meet essential needs, or serve another socially essential purpose (as determined by public consultation);

3.1.2.2. for which renewable alternatives are not available; and

3.1.2.3. for which maximum recovery and recycling of available materials has been achieved, but is proven insufficient for the needs of Aotearoa New Zealand; and

3.1.3. Only allowing mining methods that minimise the risk of environmental and social damage;

3.1.4. Taking a precautionary approach to new mining technologies, especially for offshore mining;

3.1.5. Prioritising the needs of the natural world and future generations and providing strict environmental protections relating to both the location of the extraction, so that mining in significant ecological areas is avoided, and the environmental impacts of extraction techniques; and

3.1.6. Requiring those responsible to rapidly remedy any adverse effects.

3.2. Ensure that resource consent decision-making in relation to mining:

3.2.1. Protects ecological, social, cultural, and landscape values;

3.2.2. Ensures mining can only proceed within ecosystem baselines and other acceptable environmental limits;

3.2.3. Considers the greenhouse gas contribution of mining activities and other downstream effects;

3.2.4. Provides New Zealanders with equitable opportunities to be involved in decisions about mining;

3.2.5. Enables communities, whānau, hapū, and iwi to protect areas of historical, archaeological, and/or cultural significance from mining, including the foreshore and seabed; and

3.2.6. Upholds the right of landholders, including Māori, to deny access for mining on their land.

3.3. Ensure a Just Transition[2] for communities impacted by new or declining mining activities, including by:

3.3.1. Developing a strategy for affected industries, regions and workers, in partnership with tangata whenua, communities, unions and local economic development associations; and

3.3.2. Requiring decommissioned mining sites to be returned to hapū and iwi after restoration by mining companies has been completed.

3.4. Ensure that the costs associated with the entire lifecycle of mining operations remain with the operators, including by:

3.4.1. Requiring bonds and/or minimum insurance for "worst case scenario" pollution events caused by mining activities, on land and at sea;

3.4.2. Establishing a levy on all mining operations in Aotearoa New Zealand, to fund the decommissioning of mines and the clean-up and remediation of mining land held by bankrupt or null companies; and

3.4.3. Strengthening the regulatory regime for the existing oil and gas extraction sector, to minimise greenhouse gas emissions from extraction processes.

3.5. End the extraction of coal, oil, and gas, consistent with the urgency and necessity of limiting global heating to 1.5 °C above pre-industrial levels, by:

3.5.1. Prohibiting new coal, oil and gas prospecting, new exploration and mining permits, the extension of expiring permits, and the expansion of existing permit areas both offshore and onshore;

3.5.2. Establishing a clear timeframe for phasing out coal, oil, and gas extraction (onshore and offshore), including site remediation; and

3.5.3. Working proactively to support other fossil fuel-producing countries to do the same.

3.6. Phase out the extraction of other non-essential materials, by:

3.6.1. Implementing sinking caps on sand mining that cover all sand types, in both onshore and offshore areas; and

3.6.2. Prohibiting industrial-scale hard-rock gold/silver mining.

3.7. Protect marine communities and ecosystems from the negative impacts of mining, by:

3.7.1. Amending the environmental management framework for offshore activities to ensure better protection of the marine environment beyond the 12-mile limit;

[2] A *Just Transition* requires a system transformation that applies principles of fairness, equity, and wellbeing to uphold the rights and dignity of all involved. In this context, it is required to address our current climate, ecological, and social crises.

3.7.2. Prohibiting all seabed mining and seismic prospecting within Aotearoa New Zealand's territorial sea and Exclusive Economic Zone; and

3.7.3. Supporting our Pacific Island neighbours in their leadership on the protection of the marine environment from mining.

3.8. Protect public conservation land from the negative impacts of mining, by:

3.8.1. Prohibiting new exploration, prospecting, and mining on or under all public conservation land;

3.8.2. Tightly controlling existing mining (including post-mining remediation) on public conservation land and reserves, in partnership with tangata whenua, and through consultation with environmental groups, local communities, and the public;

3.8.3. Requiring mining activities to stop immediately when rare, endemic species are found to be present on the mining site;

3.8.4. Gazetting areas of public conservation land that are deserving of schedule 4 (Crown Minerals Act) status but have been omitted from schedule 4 because of their mineral potential; and

3.8.5. Rejecting the notion of trading public conservation land for other land to facilitate extractive activities.